

Line 5

Case Name: *Norma Rojas v. Spread Your Wings, LLC, et al.*

Case No.: 22CV400450

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Norma Rojas (“Plaintiff”) moves under Code of Civil Procedure Sections 2033.010, 2033.020, and 2033.280 to deem the truth of all matters specified in Plaintiff’s Request for Admissions, Set One (“RFAs”) served on Defendant Spread Your Wings, LLC (“Defendant”) on October 22, 2025, to be admitted by Defendant, and for monetary sanctions against Defendant including attorneys’ fees and costs for this Motion. Notice of Motion (the “Motion”) at 1:21-24 (filed: Dec. 19, 2025).

The Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff served the Requests for Admissions, Set One, on Defendant on October 22, 2025. Declaration of attorney Adam S. Juratovac In Support of Motion (“Juratovac Decl.”) at ¶ 2 & Exhibit A thereto (filed: Dec. 19, 2025).

Defendant never responded to the Requests for Admissions, Set One, despite his obligation to respond under Code of Civil Procedure Section 2033.240. Juratovac Decl. at ¶ 3.

Because Defendant failed to respond, Plaintiff now moves for an Order under Code of Civil Procedure Section 2033.280 deeming admitted by Defendant the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One. C.C.P. 2033.280 (b). Plaintiff’s Memorandum of Points & Authorities in Support of Motion at 2:21-3:14.

Moreover, Defendant has failed to oppose the Motion, which the Court views as Defendant conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).

The Motion is well supported by the law, well supported by the facts set forth in the Juratovac Declaration, and reasonable *except* with respect to the total amount of sanctions it seeks here as the Court will now explain.

Because Defendant has committed a misuse of the discovery process under Code of

Civil Procedure Section 2023.010(d) by failing to respond to these RFAs, an authorized method of discovery, the Court under Code of Civil Procedure Section 2023.030(a) “may impose a monetary sanction ordering that the one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the *reasonable* expenses, including attorneys’ fees, incurred by anyone as a result of that conduct.” C.C.P. § 2023.030(a) (emphasis added).

Hence, while the Court here may and will award Plaintiff a monetary sanction paid by Defendant for Plaintiff’s reasonable attorney’s fees and costs incurred for this Motion, the *amount* of this sanction is within the wide discretion of the Court. Simply put, the Court gets to determine what amount is *reasonable* under these circumstances.

Here, in this Motion, Plaintiffs requests that the Court impose a monetary sanction on Defendant in the total amount of \$3,542.70, specifically comprising (a) \$60 cost of filing the motion; (b) \$18.95 electronic filing fee; and (c) \$3,463.75 in attorneys’ fees. Juratovac Decl. at ¶ 8.

While the \$78.95 (\$60 + \$ 18.95) in filing costs sought is reasonable, the amount of \$3,463.75 for attorneys’ fees sought for this Motion is unreasonable because this Motion is a layup. All Plaintiff had to do to win was point that it duly served on Defendant the RFAs (she did); California law requires Defendant to respond to these RFAs (it does), and Defendant failed to respond (it never did respond). That reasonably should take able counsel for Plaintiff 1.50 hours total at a reasonable rate of \$700 per hour, which equals \$1,050.00 for reasonable attorneys’ fees incurred for this Motion.

Accordingly, the Court **GRANTS** and awards Plaintiff a total monetary sanction against Defendant of **\$1,128.95**, which equals \$1,050.00 in Plaintiff’s reasonable attorneys’ fees plus reasonable filing costs of \$78.15 for this Motion.

Conclusion & Order

Accordingly, Plaintiff’s Motion is **GRANTED**. Specifically, the Court **ORDERS**:

- 1. That the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One, served on Defendant on October 22, 2025, is deemed admitted by Defendant Spread Your Wings, LLC; and**
- 2. Within thirty days of today, Defendant Spread Your Wings, LLC must pay Plaintiff Norma Rojas a total monetary sanction of \$1,128.95 for Plaintiff’s reasonable attorneys’ fees and costs for this Motion.**

Defendant Spread Your Wings, LLC is put on **NOTICE** that if it fails to comply with this **ORDER** within 30 days of today, then Defendant Spread Your Wings, LLC will be subject to further escalating sanctions, including monetary and non-monetary sanctions such as evidentiary, issue, and terminating sanctions.

SO ORDERED.

Date: July 15, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 6

Case Name: *Joseph Rostam v. Daniel A. Gonzales, et al.*

Case No.: 25CV477783

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Joseph Rostam (“Plaintiff”) moves for an Order requiring all parties to participate in mediation in good faith within 45 days, requiring defense counsel to provide three available mediation dates within 10 court days, and for monetary sanctions of \$1,250.00 for unnecessary delay and wasted costs. Notice of Amended Motion (the “Amended Motion”) at 1:21-25 (filed: April 17, 2026).

The Amended Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

At the outset, the Court would like to state that it appreciates and understands Plaintiff’s frustration that caused him to bring this Amended Motion. And the Court certainly believes Plaintiff and finds it to be a fact that, as Plaintiff puts it, “Plaintiff has repeatedly cooperated in scheduling, paid mediation fees, and remained available [for mediation]. Prior mediation efforts stalled and later efforts were disrupted by cancellations and non-confirmations [by other parties in this action]. Amended Motion at 2:5-6. All true.

Moreover, this Court does encourage *all* parties, including in this civil action and all civil actions, to resolve their cases by mediation. Silicon Valley is blessed with many excellent, efficient, and effective mediators who each day help parties resolve their disputes amicably, often generating creative solutions and resolutions that enable the parties to move forward productively and peacefully. So, lest there be any doubt, the Court would welcome and encourage all parties in *this* case to resolve their disputes by mediation.

But Plaintiff’s Amended Motion has two fatal flaws.

First, while he asks the Court to compel all parties to participate in mediation, Plaintiff fails to argue let alone establish any statutory or contractual basis in law by which the Court could force all parties here to mediate this case.

Second, and more importantly in the Court’s view, even assuming for the sake of argument that this Court has some power (inherent or otherwise) to order all these parties to participate in mediation, to do so would make no practical sense because the fundamental principles of mediation are: